



CHAPTER clxx.

An Act to make further provision with respect to the health and good government of the county borough of Middlesbrough and the collection of rates within the said borough and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the county borough of Middlesbrough in the north riding of the county of York is subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the said county borough (hereinafter called "the Corporation") acting by the council are the urban sanitary authority for the district of the borough :

And whereas it is expedient that further powers be conferred upon the Corporation with reference to streets and buildings and sewers and drains and that further provision be made for the health and good government of the borough :

And whereas it is expedient to make further provision for the more uniform assessment and collection of rates within the borough the borrowing of money by the Corporation and other matters contained in this Act :

And whereas it is expedient that the Corporation be empowered to lend money to the guardians of the poor of the Middlesbrough Union and to borrow moneys for the purpose :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-fifth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of the meeting and of the purposes thereof in the North Eastern Daily Gazette a local newspaper circulating in the borough such notice being in addition to the ordinary notices

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And whereas such resolution was published twice in the said North Eastern Daily Gazette and in the Northern Echo a newspaper also circulating in the borough and has received the approval of one of His Majesty's Principal Secretaries of State and of the Local Government Board in respect of matters within their respective jurisdiction :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule to the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Middlesbrough Corporation Act 1903.

Act divided into parts. 2. This Act is divided into parts as follows :—

- Part I.—Preliminary.
- Part II.—Police and street trading.
- Part III.—Advertisements.
- Part IV.—Sanitary matters.
- Part V.—Milk supply.
- Part VI.—Ice creams.
- Part VII.—Streets buildings and sewers.
- Part VIII.—Rates and finance.
- Part IX.—Miscellaneous provisions.

3. In this Act unless the context otherwise requires—

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“The borough” means the municipal borough of Middlesbrough: Interpretation.

“The town clerk” “the treasurer” “the borough accountant” “the medical officer of health” “the inspector of nuisances” and “the surveyor” respectively mean the town clerk the treasurer the borough accountant the medical officer of health (including any person duly authorised temporarily to act as medical officer of health) the inspector of nuisances and the surveyor of the borough:

“The town hall” means the town hall of the borough:

“Borough fund” and “borough rate” mean respectively the borough fund and the borough rate of the borough:

“District fund” and “general district rate” mean respectively the district fund and the general district rate of the borough:

“The overseers” “the assistant overseers” and “the collectors of poor rates” mean respectively the overseers of the poor the assistant overseers and the collectors of the poor rates of the parish of Middlesbrough:

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough:

“Dairy” includes any farm farmhouse cowshed milkstore milkshop or other place from which milk is supplied or in which milk is kept for purposes of sale:

“Dairyman” includes any cowkeeper purveyor of milk or occupier of a dairy milkstore or milkshop:

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any

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street or public way but shall not include (i) any flag-staff pole vane or weather-cock unless adapted or used wholly or in part for the purpose of any advertisement or announcement (ii) any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to or against or on which it is fixed or supported (iii) any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place :

“ Existing ” means existing at the passing of this Act :

“ Daily penalty ” means a penalty for each day on which any offence is continued after conviction therefor :

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities payable to bearer) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or of any local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation :

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed (including this Act) or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

4. This Act shall except where otherwise expressed or implied apply exclusively to the borough.

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Application
of Act.

PART II.

POLICE AND STREET TRADING.

5. The following provisions shall have effect with reference to children trading in the streets (that is to say) :—

Provisions as
to children
trading in
streets.

(1) "Child" shall mean a boy or girl under the age of sixteen years ;

"Trading in the streets" shall mean vending papers small wares and other articles in any street in the borough ;

"Place of safety" shall have the same meaning as in the Prevention of Cruelty to Children Act 1894 :

(2) The Corporation may make regulations as to the conditions upon which licences authorising children to trade in the streets shall be granted continued suspended and revoked including conditions as to the age and sex of children to whom licences may be granted conditions for the issue and wearing of badges and for the regulation of the conduct of children holding licences and of the hours during which the places where and the conditions under which they may trade in the streets The regulations shall be subject to the approval of one of His Majesty's Principal Secretaries of State and shall both before and after such approval is given be published in such manner as the Secretary of State may direct Provided that such regulations shall not impose any restriction on the grant of licences on the ground of the poverty or the previous bad character either of the child or of its parents or guardians :

(3) Subject to such regulations the Corporation may grant a licence to any child authorising him to trade in the streets and after such day as may be fixed in the regulations or such later day (hereinafter referred to as "the appointed day") as may be fixed by the Secretary of State no child shall trade in the streets unless provided with a licence under this section :

(4) Any constable may take into custody without warrant any child found after the appointed day trading in the streets without a licence or in contravention of the conditions of his licence and may convey him to a place of safety and he may be there detained until he can be brought

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before a court of summary jurisdiction and that court may make such order as is mentioned in the next following subsection :

(5) Where it appears to a court of summary jurisdiction that a child has been found trading in the streets without a licence or in contravention of the conditions of his licence the court may if satisfied on inquiry that it is expedient so to deal with him—

(A) Order that the child be taken out of the custody of the person purporting to have the custody charge or care of him and be committed to the custody of a relative of the child or some other fit person named by the court (such relative or other person being willing to undertake such custody) until he reaches the age of sixteen years or for any shorter period and the provisions of sections 7 and 8 of the Prevention of Cruelty to Children Act 1894 shall so far as applicable and with the necessary modifications apply as if the order had been made under that Act and the court may of its own motion or on the application of any person by order renew vary and revoke any such order ;

(B) Order that the child if he be under the age of fourteen years be sent to an industrial school and thereupon all the provisions of the Industrial Schools Acts shall apply as if the child had been so sent under those Acts ;

(C) In the case of a child found trading without a licence the court may in lieu of making such order impose on summary conviction a penalty not exceeding ten shillings :

(6) The Corporation may contribute the whole or part of the expense of the education and maintenance of any child dealt with under the preceding subsection :

(7) Any person who having the custody charge or care of a child allows him after the appointed day to contravene the provisions of this section or any of the regulations made hereunder shall on summary conviction be liable to a penalty not exceeding twenty shillings for each offence :

(8) The Corporation shall appoint such inspectors and other officers as they may deem necessary for the purpose of administering or assisting in the administration of the foregoing provisions and for the purpose of periodically

visiting the houses of persons to whose custody any children have been committed under this section with the object of securing the proper treatment of such children : A.D. 1903.

(9) Where the place of safety to which a constable takes a child is a workhouse the master shall receive the child into the workhouse if there is suitable accommodation therein for the same and shall detain the child until the case is determined and any expenses incurred in respect of the child shall be deemed to be expenses in the relief of the poor :

(10) Any expense incurred by the Corporation in the execution of this section shall be defrayed out of the borough fund or borough rate.

PART III.

ADVERTISEMENTS.

6. It shall not be lawful in any street in the borough to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Corporation which consent shall be in writing and may be for such a time and contain such terms and conditions as the Corporation may think fit Any person acting in contravention of the provisions of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Advertising vans.

7.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained. Restriction on hoardings.

(2) It shall not be lawful after the passing of this Act to erect any such hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine.

(3) The owner or other person using any such hoarding wall or similar structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and if any papers affixed for advertising purposes to such hoarding wall or other structure fall away or become detached shall forthwith remove and clear away such papers.

A.D. 1903. — (4) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Appeal. 8. Any person aggrieved under either of the two preceding sections of this Act by the refusal of the Corporation to give such consent or by the terms and conditions of such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal or the giving of such consent as the case may be provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the Court shall have power to make such order as the Court may think fit and to award costs such costs to be recoverable summarily as civil debts.

Sky signs. 9.—(1) It shall not be lawful to erect or fix to upon or in connection with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Corporation under this subsection shall become void (namely):—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have

expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847. A.D. 1903.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

10. Any consent licence or condition given or made under this part of this Act may be under the hand of the town clerk or the surveyor. Authentica-
tion of
licences &c.

PART IV.

SANITARY MATTERS.

11.—(1) Where on the certificate of the medical officer of health it appears to the Corporation that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Corporation may if they think fit cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same. Filthy and
dangerous
articles to be
purified.

(2) If any owner suffer any unnecessary damage the Corporation shall compensate him for the same and the Corporation shall also reasonably compensate the owner for any articles destroyed.

12. Whenever it shall be certified to the Corporation by the medical officer of health that in his opinion it is desirable with a view to prevent the spread of infectious disease that he should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may by notice require such person to furnish to the medical officer of health within a reasonable time to be specified in the notice a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein Persons en-
gaged in
washing or
mangling
clothes to
furnish lists
of owners of
clothes in
certain cases.

A.D. 1903. — and every person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Disinfection
of infected
clothes &c.

13. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from any infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Corporation or to the satisfaction of the medical officer of health and in default shall be liable to a penalty not exceeding forty shillings and the Corporation shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Penalty on
guardian
permitting
infected child
to attend
school.

14. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer of health that the child is not to be sent to school permit such child to attend school without having procured from the medical officer of health a certificate which shall be granted free of charge upon application that in his opinion such child may attend school without undue risk of communicating such disease to others. If any person offend against this enactment he shall be liable to a penalty not exceeding forty shillings.

Principal of
school to fur-
nish list of
pupils in cer-
tain cases.

15. Whenever any scholar who attends any school within the borough shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith send notice thereof to the medical officer of health and shall furnish to the Corporation at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

Infected per-
son not to
carry on
business &c.

16. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the borough or pick fruit intended for consumption within the borough or engage in any trade or business connected with food intended for consumption within the borough or carry on any trade

or business in such a manner as to be likely to spread infectious disease within the borough and if he does so he shall be liable to a penalty not exceeding twenty shillings. A.D. 1903.

17. No person shall take out of any lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any lending library any book which has been to his knowledge exposed to infection from any infectious disease until such book has been disinfected to the satisfaction of the medical officer of health or of the inspector of nuisances. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings. Protection against infection of books in public libraries.

18. If any person shall at the request of the Corporation or medical officer of health stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss occasioned by reason of such stoppage. Compensation to persons ceasing employment.

19. No trade or manufacturing refuse building or other similar materials shall be deposited in any privy cesspool ashpit ash-tub or other receptacle and if any such refuse building or other similar materials be so deposited the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt. Charge for emptying privies of trade refuse.

20. Public notice of the provisions of this part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills among persons affected or likely to be affected so far as such persons can reasonably be ascertained. Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with. Public notice to be given of provisions of this part of Act.

PART V.

MILK SUPPLY.

21. Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall notify to the Corporation or to the medical officer of health all cases of infectious disease among persons engaged in or in connection with his dairy so soon as he becomes aware or has reason to suspect that such infectious disease exists. Any such dairyman who commits any Dairyman to notify infectious disease existing among their servants &c.

A.D. 1903. — breach of this enactment shall be liable to a penalty not exceeding forty shillings.

Dairymen to furnish lists of customers in certain cases.

22. Whenever it shall be certified to the Corporation by the medical officer of health that the outbreak or spread of infectious disease is in the opinion of such medical officer of health attributable to the milk supplied by any dairyman the Corporation may require such dairyman to furnish to them within a time to be fixed by them a full and complete list of the names and addresses of all his customers within the borough and such dairyman shall furnish such list accordingly and the Corporation shall pay to him for such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings.

Dairymen to furnish lists of sources of their supply of milk in certain cases.

23. If the medical officer of health shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks.

Every such person failing to comply with such requirement shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Penalty for selling milk of diseased cows.

24. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on failing to isolate diseased cows.

25. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to notify cases of tuberculosis.

26. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer of health stating his name and address and the situation of the dairy or premises where the cow is.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings. A.D. 1903.

27.—(1) It shall be lawful for the medical officer of health or any person provided with and if required exhibiting the authority in writing of such medical officer of health to take within the borough for examination samples of milk produced or sold or intended for sale within the borough. Power to take samples of milk.

(2) The like powers in all respects may be exercised outside the borough by the medical officer of health or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

28.—(1) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer of health or any person provided with and if required exhibiting the authority in writing of the medical officer of health may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer of health or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. Power to inspect cows and to take samples of milk.

(2) If the medical officer of health is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(3) If the medical officer of health has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised

A.D. 1903. — in the case of such dairy provided that the medical officer of health or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(4) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer of health or such authorised person or veterinary surgeon as aforesaid as may be required by the medical officer of health person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing the medical officer of health person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(5) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or county district in which it is situate.

(6) The said order shall be forthwith withdrawn on the Corporation or the medical officer of health being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(7) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(8) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

29.—(1) The dairyman may appeal against an order of the Corporation under the last preceding section of this Act or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such

officer shall for the purposes of the appeal have all the powers of a petty sessional court. A.D. 1903.

(2) The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

(3) The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

30. If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order. Compensation to dairyman.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

31. The Corporation shall cause to be given public notice of the effect of the foregoing provisions of this part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix. Notice of provisions of this part of Act.

32. Offences under this part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty Procedure.

A.D. 1903. sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

As to expenses.

33. All expenses incurred by the Corporation in carrying into execution the provisions of this part of this Act shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough Provided that no such test shall be applied except with the previous consent of the owner of such cow.

Execution of this part of Act by committee.

34. This part of this Act may be carried into execution by a committee of the Corporation formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Corporation.

Provisions as to retailers of milk.

35. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets.

PART VI.

ICE CREAMS.

For regulating manufacture and sale of ice creams &c.

36.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the borough—

- (A) Causes or permits ice creams or any similar commodity or any material used in the manufacture thereof to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer of health ;

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shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building any part of which is used for the manufacture of ice cream or any similar commodity suffering from any infectious disease the medical officer of health may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation may compensate the owners of the ice cream similar commodity or materials so destroyed.

37. Every dealer in ice creams or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

As to dealers
in ice creams.

38. The Corporation shall cause to be given public notice of the effect of the foregoing provisions of this part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

Notice of
provisions of
this part of
Act.

PART VII.

STREETS BUILDINGS AND SEWERS.

39. If any land adjoining any street is allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Corporation owing to the absence or inadequate repair of any such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the town clerk to the owner or occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred may be recovered from such owner or occupier summarily as a civil debt.

Fencing
lands adjoining
streets.

A.D. 1903.
Recreation
and burial
grounds to be
deemed
streets.

40. The public parks and recreation grounds cemeteries and burial grounds within the borough shall be deemed streets for the purposes of section 29 and of so much of section 28 of the Town Police Clauses Act 1847 as relates to the following offences:—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal :

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework.

Every person who throws or lays any dirt litter or ashes or night soil or any carrion fish offal or rubbish on any street.

Separate
system of
sewerage.

41.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this Act called a “sewage sewer”) and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this section called a “surface water sewer”).

(2) Where under the provisions of the Public Health Acts the Corporation have power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly.

(3)—(A) Where in any street separate sewage sewers and surface water sewers shall have been provided no sewage shall be allowed to pass from any premises into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation.

(B) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Corporation may if they think fit make all such alterations.

A.D. 1903.

PART VIII.

RATES AND FINANCE.

42. The Corporation may if they think fit in lieu of themselves levying the borough rate general district rate and other rates leviable by them within the borough or any part thereof order such rates respectively to be made by and enforce the payment thereof from the overseers in the same manner as in the case of a borough rate under the general law and if any such order be made by the Corporation such rates shall be made assessed levied and collected by the overseers in the same manner and under the same provisions (including the provisions as to rating of owners instead of occupiers compositions and appeals) as in the case of the poor rate but subject to the exemptions (partial or otherwise) for the time being applicable to such borough rate general district rate and other rates respectively in respect of any property in the borough and such rates or any of them may be made assessed levied and collected either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rates respectively All rates which under the provisions of this section are made assessed demanded levied or collected by the overseers of the said parish shall be recoverable by them in the same way as rates are recoverable under section 256 of the Public Health Act 1875 and not otherwise.

Borough general district and other rates may be assessed levied and collected as borough rates.

43. The Local Government Board may on the application of the Corporation prescribe and from time to time amend and vary a form of rate to include the poor rate borough rate general district rate and any other rate leviable by them or any one or more of such rates and they may in respect of such rates prescribe a form of precept demand note receipt and other necessary documents and any form so prescribed shall be sufficient in law.

Local Government Board may prescribe form of rate &c.

A.D. 1903.

Place of pay-
ment of
rates.

44. All rates rents and charges which may be demanded or collected by the Corporation or the overseers shall if not paid at the time and place of demand be paid at the municipal buildings or at such other place within the borough as the Corporation shall from time to time appoint and in the event of the Corporation appointing any such other place for payment of any such rates rents or charges notice of the place so appointed shall be given on every demand note for the rates rents or charges payable thereat.

As to audit
of accounts.

45. The accounts of the overseers and collectors of poor and other rates relating to the rates to be levied and collected by them or any of them pursuant to the section of this Act of which the marginal note is "Borough general district and other rates may be assessed levied and collected as borough rates" shall be submitted to and be audited by the district auditor in the same manner as the poor rate and the district auditor shall with respect to such accounts have the like powers and be subject to the like obligations in every respect as in the case of an audit under the Acts relating to the relief of the poor for the time being in force and any person aggrieved by the decision of the auditor shall have the like rights and remedies as in the case of such last-mentioned audit.

The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time to time prescribed by the Local Government Board in respect of the rates to be levied by them as aforesaid one of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act.

The Corporation shall repay to the overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this Act.

The provisions of sections 5 and 6 of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors of the poor and other rates and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 of the last-mentioned Act.

46. Nothing in the four preceding sections shall in any way affect the present collectors of poor rate for the parish of Middlesbrough who shall continue to hold their offices upon the same conditions and terms as to duties and remuneration as heretofore unless any such collector shall agree with the Corporation to collect the borough rate general district rate and rates other than the poor rate in the same area in which he collects the poor rate and the guardians shall pay him for the performance of that duty such additional remuneration as shall be agreed between him and the Corporation and failing agreement as the Local Government Board shall direct and approve and such additional remuneration shall be refunded to the poor rate out of the several rates other than the poor rate which are collected by the overseers proportionately to the total amounts for which such rates are respectively required to be made.

A.D. 1903.
Provisions as
to existing
poor rate
collectors.

47. The expenses of the overseers in connection with the assessment levying and collection of any rates transferred to them under the powers contained in this part of this Act shall be paid out of the several rates so collected proportionately to the total amounts for which such rates are respectively required to be made.

Expenses of
overseers to
be paid.

48.—(1) The Corporation may from time to time if they think fit by resolution determine that any sum or sums which the Middlesbrough Board of Guardians (hereinafter referred to as “the borrowing authority”) may be by law authorised to borrow or re-borrow upon the security of any rates or funds and which the borrowing authority may be desirous of borrowing from the Corporation shall be lent by the Corporation accordingly.

Power to
lend to
guardians.

(2) Any sum or sums which the Corporation shall resolve to lend as aforesaid may be raised either by the issue of stock created and issued by the Corporation under and in accordance with the provisions of Part V. of the Public Health Acts Amendment Act 1890 or by borrowing or re-borrowing the same on mortgage of the borough fund and borough rate and the provisions of sections 236 to 238 both inclusive of the Public Health Act 1875 shall apply to all money raised by borrowing on mortgage under this section.

(3) The following provisions shall apply to moneys borrowed or raised for the purpose of loans to the borrowing authority:—

(A) The sum shall be lent by the Corporation to the borrowing authority for a period not exceeding that for which

A.D. 1903.
—

the borrowing authority is authorised to borrow or re-borrow the same and with a provision for repayment by equal annual instalments of principal or of principal and interest combined :

(B) If any sum payable to the Corporation for principal in respect of any sum lent to the borrowing authority shall not be received within six months of the time appointed for the payment thereof a like sum shall be set apart out of the borough fund and if after the application or investment under subsection (4) (c) of this section of the sum so set apart or the payment thereof into the stock (redemption) fund under subsection (5) (B) of this section the whole or any part thereof shall be received by the Corporation the sum so received shall be carried to the credit of the borough fund.

(4) The following provisions shall apply to moneys borrowed for the purpose of loans to the borrowing authority and not raised by the issue of stock :—

(A) Every sum so borrowed shall be repaid by the Corporation within a period to expire not more than one year after that for which the same was lent by them to the borrowing authority :

(B) All sums received from the borrowing authority for interest shall be applied towards the payment of interest payable in respect of moneys so borrowed the balance (if any) being carried to the credit of the borough fund :

(c) All sums received from the borrowing authority for principal (except sums which are to be carried to the credit of the borough fund under the provisions of subsection (3) (B) of this section) and all sums set apart out of the borough fund under subsection (3) (B) of this section shall be applied towards the repayment of the principal payable in respect of moneys so borrowed and until so applied shall be invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments The interest derived from such investments shall be applied in making good any loss or deficiency of or in the principal moneys so invested that may arise by depreciation of the investments or otherwise and if not required for that purpose shall be applied as if the same had been received for interest from the borrowing authority.

(5) The following provisions shall apply to moneys raised by the issue of stock for the purpose of loans to the borrowing authority:— A.D. 1903.

(A) All sums received from the borrowing authority for interest shall be paid into the stock (dividends) fund:

Provided that if the sums so received shall be in excess of the dividends payable in respect of the proportion of stock issued to raise money to lend to the borrowing authority such excess may be carried to the credit of the borough fund:

(B) All sums received from the borrowing authority for principal (except sums which are to be carried to the credit of the borough fund under the provisions of subsection (3) (B) of this section) and all sums set apart out of the borough fund in pursuance of subsection (3) (B) of this section shall be paid into the stock (redemption) fund.

(6) If any doubt shall arise as to how much of any sum received by the Corporation from the borrowing authority is to be regarded as principal or interest the question shall be determined by the Local Government Board.

(7)—(A) The borough accountant shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is payable to the Corporation in respect of moneys lent by them to the borrowing authority and raised otherwise than by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing for the year next preceding the making of such return the amounts which have been received from the borrowing authority for principal the amounts which have been applied directly towards the repayment of the principal payable in respect of moneys raised under this section and the amounts which have been invested and the description of the securities upon which any investment has been made and the purposes to which any portion of the investment has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the borough accountant shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of

A.D. 1903. the return shall be enforceable by writ of Mandamus to be obtained
— by the Local Government Board out of the High Court.

(B) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to apply or invest in statutory securities any sum required to be applied or invested or have misapplied any of the investments or the produce of the sale thereof the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which such default or misapplication has occurred shall be applied directly towards repayment of principal or be invested and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(8)—(A) Any mortgagee of the Corporation in respect of any moneys borrowed on mortgage under this section may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(B) The application for the appointment of a receiver shall be made to the High Court.

Power to grant gratuities to officers and servants.

49. The Corporation may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any officer or servant in receipt of a salary or wage paid by the Corporation who may be disabled or injured in the public service of the borough or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service or may at their discretion contribute any sum (not exceeding as aforesaid) to any charity or institution which may have undertaken the maintenance or relief of any such officer or servant. Every such gratuity or contribution shall be charged on and paid out of the fund or funds on which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Power to Corporation to subscribe to any local infirmary hospital or nursing home.

50. The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe yearly to any local infirmary hospital or nursing home such sums as the Corporation think fit but not exceeding one hundred pounds in the whole.

51. The Corporation may if they think fit contribute towards the expenses of maintaining a public band of music any sum not exceeding in any one year an amount which would be produced by a rate of one-eighth of a penny in the pound on the assessable value of the borough to the general district rate and all such payments shall be paid out of the district fund Section 24 of the Middlesbrough Improvement Act 1877 is hereby repealed.

A.D. 1903.
Contribution
to public
band of
music.

52.—(1) The Corporation may if they think fit establish a fund to be called “the fire insurance fund” with a view of providing a sum of money which in the event of a fire shall be available for the purpose of reconstructing rebuilding repairing restoring replacing and making good any loss or damage by or in consequence of fire to any buildings works and property belonging to or on loan to or under the care custody or control of the Corporation.

Fire insur-
ance fund.

(2) In each year after the establishment of the fire insurance fund the Corporation shall pay into that fund such a sum as would in their opinion be equal to the aggregate amount of the premiums payable in the event of the Corporation insuring their buildings works and property in some public fire insurance office in England but when the fund shall amount to the sum of twenty thousand pounds the Corporation may if they think fit discontinue such yearly payments but so that if the fund is at any time reduced the Corporation shall recommence and continue the yearly payments until the fund be restored to the sum of twenty thousand pounds Provided that nothing in this Act shall affect the power of the Corporation to insure any of their buildings works and property against loss or damage by fire in any public insurance office in England and if the Corporation so insure any of their buildings works and property the yearly sums payable to the fire insurance fund shall during the continuance of any such insurance be reduced by the amount of the premiums payable in respect of such insurance.

(3) The Corporation shall provide the yearly payments afore-said by contributions from the rents and revenues of the lands buildings and undertakings which if the buildings works and property were insured in a public insurance office would be properly chargeable with the payment of the premiums of such insurance and if there be no rents or revenues specially chargeable then by contributions from the fund or rate properly chargeable therewith.

(4) Except so far as the fire insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses from or in consequence of fire all moneys for the time

A.D. 1903. — being standing to the credit of the fire insurance fund shall be invested in statutory securities and the interest and annual proceeds arising from those securities shall be invested and accumulated until the fund amounts to the sum of twenty thousand pounds.

(5) If at any time and from time to time the fire insurance fund shall be insufficient to make good any loss or damage sustained by the Corporation by or in consequence of fire they may with the sanction of the Local Government Board borrow at interest on the credit of the funds and rates properly chargeable therewith such sums of money as will be necessary to make up the deficiency.

(6) The Corporation shall repay any moneys borrowed under this section within such period (not exceeding sixty years) from the date of the borrowing of the same as the Corporation with the sanction of the Local Government Board determine in each case.

Interest on
fire insurance
fund when
full &c.

53.—(1) The interest and annual proceeds of the investment of the fire insurance fund when and so long as it is at its prescribed maximum shall be carried to the credit of the funds revenues and rates out of which such fund was established in the proportions in which such funds revenues and rates have contributed to the fund.

(2) Resort may be had by the Corporation to the fire insurance fund for any purpose for which it is so authorised although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

Power to
borrow.

54. The Corporation may independently of any other borrowing power borrow at interest money for paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose and the money so borrowed shall be paid off within five years from the date of borrowing the same and in order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the borough fund and borough rate and the district fund and general district rate.

Incorporation of certain
provisions of
Middlesbrough Corporation (Gas)
Act 1898.

55. The provisions contained in sections 16 to 25 of the Middlesbrough Corporation (Gas) Act 1898 shall be incorporated with this Act and as far as applicable apply to all moneys borrowed under the powers of this Act except under the section of this Act the marginal reference to which is "Power to lend to guardians."

Provisions as
to raising
money by
bills.

56. Instead of raising for any purposes by the creation and issue of stock or of mortgages money which they are authorised to raise by either of those methods (whether under this Act or any other Act of Parliament or otherwise howsoever) the Corporation

may if they see fit raise for those purposes such money by means of bills subject to and in accordance with the following provisions :— A.D. 1903.

- (1) Bills issued by the Corporation shall be called “ Middlesbrough Corporation bills ” :
- (2) A Middlesbrough Corporation bill shall be a bill in the form prescribed by regulations made in pursuance of this Act for the payment of the sum named therein in the manner and at the date therein mentioned so that the date be not less than three or more than twelve months from the date of the bill :
- (3) Such bills may be offered for purchase by tender in such manner on such conditions and after public advertisement in such manner as the Corporation determine :
- (4) The bills shall be issued under the authority of a warrant sealed by the Corporation :
- (5) Each bill shall be for the amount directed by the Corporation not being less than five hundred pounds :
- (6) Each bill shall be under the seal of the Corporation :
- (7) A register of the bills issued and renewed by the Corporation shall be kept by the borough accountant or such other person as may be appointed by the Corporation and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Corporation :
- (8) The Corporation shall not issue bills payable to bearer :
- (9) The Corporation shall before issuing any bill under this Act from time to time make regulations with respect to bills subject to and in accordance with this Act and shall furnish to the Local Government Board a copy of any regulations so made Such regulations shall provide—
 - (A) For regulating the preparation form mode of issue mode of payment and cancellation of bills ;
 - (B) For regulating the issue of a new bill in lieu of one defaced lost or destroyed ;
 - (C) For preventing by the use of counterfoils or of a special description of paper or otherwise fraud in relation to bills ;
 - (D) For the proper discharge to be given upon the payment of a bill :

A.D. 1903.
—

- (10) The Corporation may enter into such arrangements with any bank for carrying into effect the provisions of this Act with respect to the issue of bills and to the payment of the principal sum named therein and to all matters relating thereto and for the proper remuneration of such bank with reference thereto as they may think proper. Such remuneration shall be apportioned between the several funds or rates to which the principal moneys raised by the bills are chargeable :
- (11) The amount of money received by the Corporation in respect of a bill shall be deemed to be principal money raised by means of such bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised :
- (12) The Corporation shall provide from the same source and pay at the appropriate times into a sinking fund or sinking funds the same sums for repayment of the principal money so raised as they would have done if mortgages of the same amount had been issued and such fund or funds shall be dealt with in the same manner as if the same were a mortgage sinking fund and the Corporation shall pay the interest on the principal money out of the fund or rate to which the principal money so raised is charged :
- (13) The aggregate amount payable on bills current at any one time shall not exceed the sum of one hundred and fifty thousand pounds except by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills :
- (14) The Corporation may subject to the provisions of the preceding subsection renew bills at maturity :
- (15) Money raised by the issue of bills shall be employed by the Corporation for the purposes of the several statutory borrowing powers in respect of which the bills are respectively issued :
- (16) For the repayment of the principal money raised by bills the Corporation may raise money by the creation and issue of stock under and in accordance with the provisions of Part V. of the Public Health Acts Amendment Act 1890 or by the issue of mortgages or further bills but save as aforesaid the powers given to the Corporation to raise moneys by

the creation of stock or mortgages shall be suspended to the extent to which moneys have been raised by the issue of bills: A.D. 1903.

- (17) A Middlesbrough Corporation bill shall entitle the holder to payment at maturity of the sum expressed in such bill to be payable and shall be charged on all the revenues of the Corporation :

The expression “revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates leviable by or on the precept of the Corporation :

- (18) The borough accountant shall within forty-two days after the twenty-fifth day of March in any year during which any bills have been issued paid off or are outstanding under this section transmit to the Local Government Board a return in such form as the Board may prescribe and containing all such particulars as they may require in regard to the issue and payment of bills by the Corporation.

PART IX.

MISCELLANEOUS PROVISIONS.

57. For the purposes of section 112 of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established anew not only if it is established newly but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of nine months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Corporation but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Defining the establishing of a new-business (section 112 PublicHealth Act 1875).

58. Save as otherwise by this Act expressly provided all offences against this Act and penalties forfeitures damages costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with the penalty

Recovery of penalties &c.

A.D. 1903. shall not be recovered as penalties but may be recovered summarily as civil debts.

As to appeal. **59.** Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may in cases where no other appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

Penalties to be paid over to treasurer &c. **60.** All penalties recovered under this Act (except penalties against the Corporation) shall be paid to the treasurer and be by him as to penalties in connection with municipal matters carried to the credit of the borough fund as to penalties in connection with sanitary matters carried to the credit of the district fund and as to penalties in connection with other matters carried to such fund as the Corporation may direct.

Saving for indictments &c. **61.** Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Several sums in one summons. **62.** Any information complaint summons warrant or notice issued or given by the Corporation for any purpose of this Act may contain in the body thereof or in a schedule thereto several sums.

Judges not disqualified. **63.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the council or being liable to any rate.

In executing works instead of owner Corporation only liable for negligence. **64.** Whenever the Corporation or the surveyor under this or any other Act or any byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or

him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing And any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid may be recovered from such owner occupier or other person or may be added to and shall be deemed part of any private improvement expenses payable by such owner or occupier. A.D. 1903.

65. The accounts of the receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporation Acts and the Middlesbrough Corporation Act 1892. Audit of accounts.

66. In the case of any notice or other such document under this Act requiring authentication by the Corporation the signature of the mayor or town clerk or other duly authorised officer of the Corporation shall be sufficient authentication Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by the two hundred and sixty-seventh section of that Act authorised to be served Provided that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business. Authentication and service of notices.

67.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

68. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown. Crown rights.

A.D. 1903. **69.** All the costs charges and expenses preliminary to and of
Costs of Act. and incidental to the preparing and obtaining this Act as taxed
by the taxing officer of the House of Lords or of the House of
Commons shall be paid by the Corporation out of the borough
fund and borough rate and the district fund and general district
rate in equal proportions or out of moneys to be borrowed for
that purpose under the authority of this Act.

Printed by EYRE and SPOTTISWOODE,
FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

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